

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD.,
AND CJ DELUZ NIGERIA LTD., *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA,
AND RAYA BAKHIREV, *Respondents*.

DOCKET NO. 20-12

Served: June 11, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER REQUIRING BRIEFING

Complainants allege that Respondents violated the Shipping Act with regard to the shipment of seventeen vehicles. On January 7, 2021, the completion date for discovery in this proceeding was extended to February 22, 2021. On February 22, 2021, Complainants moved for an order compelling MTL to respond to their discovery requests and for another order revising the established schedule. Respondents opposed Complainants' motion and filed a cross-motion to compel. On May 6, 2021, an order was issued instructing Respondents to produce certain storage invoices by May 25, 2021, but denying Complainants' motion to compel in all other respects. Complainants were also ordered to provide by May 25, 2021, any responsive documents sought by Respondents in their cross-motion to compel. In addition, the parties were ordered to file a joint status report by June 1, 2021, and briefing for this proceeding was scheduled to end by August 4, 2021.

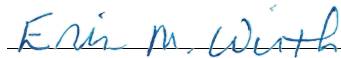
On June 1, 2021, a joint status report ("JSR") was received from Complainants, stating that "complainants are unable to proceed forward with briefing;" seeking an order compelling Respondents to produce certain documents, including AES and dock receipts related to three automobiles, as well as the storage invoices requested for the warehouse facility in Houston, Texas; and requesting a revised briefing schedule. JSR at 2-3.

Counsel for Respondents states in an attached email that: "I believe the Order clearly states at page 6 that only storage invoices are to be produced; it does not mention any AES declarations. I do not believe I have to respond to your new theories of any alleged violations as the pleadings are closed, and the time to amend any new pleading has passed, so you may put this response in the status report. It is not proper to raise new theories via a joint status report." JSR, Appendix D.

A joint status report is not a motion, thus Complainants' request fails to satisfy the Commission's requirements for the filing of motions or for filing requests for reconsideration and is procedurally improper. The request is also substantively improper as Respondents appear to have substantially complied with the order to produce the storage invoices. *See* JSR, Appendix C. Accordingly, Complainants' request for additional discovery is **DENIED**. No further discovery will be ordered. The parties shall file briefs as set forth in the schedule below and raise any objections or concerns in the briefs.

It is hereby **ORDERED** that the parties comply with the following schedule.

July 8, 2021	Complainants file brief with proposed findings of fact and appendix.
August 5, 2021	Respondents file opposition brief with proposed findings of fact and responses to Complainants' proposed findings of fact, and appendix.
August 19, 2021	Complainants file reply brief with responses to Respondents' proposed findings of fact.



Erin M. Wirth

Chief Administrative Law Judge